

3.	<i>Xie vs. Chang</i> <i>2025-01481320</i>	Before the court is the petition to confirm contractual arbitration award filed by petitioners Shuchun Xie and Zixuan An (collectively, Petitioners) against respondents Emerald Monkey, LLC, Emerald Dragon, LLC, Alan Tsai, Edward Manolos, and Henry Chang (collectively, Respondents). As more fully set forth below, the petition is GRANTED. By this petition, Petitioners seek to confirm the contractual arbitration award JAMS arbitrator Judge Richard M. Silver (Ret.) (Arbitrator) issued and served on January 3, 2025, awarding Petitioners a total of \$197,957.73 in the following sums: (1) From Henry Chang individually – \$68,750.00; (2) From all Respondents, jointly and severally – \$78,000.00; and (3) From all respondents, individually and jointly (a) attorney fees in the amount of \$10,155.69 and an additional amount of \$1,500.00 incurred to complete arbitration; (b) costs in the amount of \$12,885 less any refunds from JAMS; (c) pre-judgment interest in the amount of \$10,682.28 as against Henry Chang; and pre-judgment interest in the amount of \$15,984.76 against Emerald Monkey, LLC, Emerald Dragon, LLC, and guarantors Henry Chang, Edward Manolos, and Alan Tsai both through November 18, 2024, and continuing thereafter at the rate of 10% per annum. (Petition § 8, Ex. 8c.) A petition to confirm a contractual arbitration award must (1) set forth the substance of or have attached a copy of the agreement to arbitrate; (2) set forth the names of the arbitrators; and (3) set forth or have attached a copy of the award and the written opinion of the arbitrators, if any. (Code Civ. Proc., § 1285.4.) If a petition to confirm an arbitration award “is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Code Civ. Proc., § 1286.) If the award is confirmed, an enforceable judgment is entered with the same force and effect as a judgment in a civil action. Here, the petition complies with the foregoing requirements by attaching a copy of the parties’ arbitration agreement, identifying the Arbitrator, and attaching a copy of the final award the Arbitrator issues and served on all parties. Accordingly, the petition must be granted and the award confirmed unless Respondents establish a basis for vacating
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		or correcting the award. Respondents did not oppose the petition or file a petition to vacate or correct the award. The court therefore GRANTS the petition subject to Petitioners clarifying the correct amount of the award and the judgment to be entered. The court notes the sum total in the award itself was \$197,957.73. The petition states Respondents are to pay \$185,072.73 to Petitioners (Petition §§ 3(b) and 8(b)(1)), but also provides sums totaling \$187,927.73. (Petition § 8(b)(4).) The court will enter the total following a discussion. Counsel for Petitioners to give notice.
4.	<i>Smith vs. Interinsurance Exchange of the Automobile Club</i> 2026-01542336	Before the court is the second petition to compel arbitration filed by petitioner Mark Smith (Petitioner) seeking an order compelling respondent Interinsurance Exchange of the Automobile Club (Respondent) to arbitrate Petitioner's pending underinsured motorist claim with Respondent. <u>Petitioner's counsel, Mark B. Plummer, and Respondent's counsel, Willis J. King, III, are ordered to appear for the hearing to discuss this matter. Remote appearances are acceptable.</u> Code of Civil Procedure section 1281.2 requires the court to order arbitration if it determines an agreement to arbitrate the controversy exists and a party to the agreement refuses to arbitrate that controversy, unless it determines: (a) the right to compel arbitration has been waived by the party seeking to compel arbitration, (b) grounds exist for rescission of the agreement to arbitrate, or (c) a party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc., § 1281.2, subds. (a)-(c).) Petitioner contends Respondent has refused to participate in, or schedule, binding arbitration. Respondent denies these claims. Respondent's counsel attests Respondent has never refused to arbitrate Petitioner's UIM claim and has agreed the claim should proceed to arbitration pursuant to the applicable insurance policy. (King III Decl., ¶ 2.) Furthermore, on May 19, 2026, Respondent's counsel sent an email to Petitioner's counsel reiterating Respondent's willingness to proceed with arbitration, proposing multiple arbitrators and requesting the parties simply schedule the arbitration and avoid further motion practice or delay, but